

		in their briefs on appeal. Accordingly, we deem plaintiffs to have abandoned the issue”].) The failure to challenge a contention in a brief results in the concession of that argument. (DuPont Merck Pharmaceutical Co. v. Sup. Ct. (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) Plaintiff attempted to file an Amended Complaint which was rejected; Plaintiff believes it can amend the complaint to cure the deficiencies identified by the demurrer. The Court will therefore grant Plaintiff the opportunity to amend the pleading. Plaintiff shall file its Amended Complaint within 20 days of this order. Defendant to give notice.
113	Selene Finance v. Kirton, 2024-01412902	MOTION FOR LEAVE TO FILE AMENDED COMPLAINT – CONTINUED DUE TO PENDENCY OF APPEAL The hearing on Plaintiff Selene Finance, LP’s renewed motion for leave to file a First Amended Complaint is CONTINUED to AUGUST 31, 2026, at 9:00 a.m. in Department N14. No further briefing will be permitted. The Court finds that the proposed amendments to the Complaint are embraced by the pending appeal (G065356), as Plaintiff seeks to remove causes of action asserted against Defendant Miller which were involved in the order appealed from. While the appellate court has issued an opinion, remittitur has not yet issued. The court notes that it “has wide discretion in allowing the amendment of any pleading [citations], [and] as a matter of policy the ruling of the trial court in such matters will be upheld unless a manifest or gross abuse

		of discretion is shown.” (Melican v. Regents of University of California (2007) 151 Cal.App.4th 168, 175.) “Where no prejudice is shown to the adverse party, the liberal rule of allowance prevails.” (Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564.) Here, Defendants have shown no prejudice that will result from allowing the proposed amendment. In fact, Defendant Kirton did not file any opposition to the motion. While Defendant Miller contends that amendment would be futile, in this instance that argument is best addressed by way of demurrer, motion for judgment on the pleadings or other appropriate proceedings. (See Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048; Atkinson v. Elk Corp. (2003) 109 Cal.App.4th 739, 760.) CASE MANAGEMENT CONFERENCE CURRENTLY SCHEDULED FOR 08/03/2026 IS CONTINUED TO 09/21/2026 at 1:30 p.m. Clerk to give notice.
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